

26STCV10160 26STCV10160

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-25

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Case Number: 26STCV10160 Hearing Date: August 25, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

JACK AZATIAN

vs.

GLOBAL INVESTMENT ENTERPRISE RIDGECREST,
LLC, et al.

Case

No.: 26STCV10160

Hearing Date: August 25, 2026

Defendants'

demurrer is SUSTAINED, WITH 20 DAYS LEAVE TO AMEND.

On 3/30/2026, Plaintiff Jack Azatian

(Plaintiff) filed suit against Global Investment Enterprise Ridgcrest, LLC

(Ridgcrest) and Global Land Investment Company, LLC, alleging: (1) failure to provide accounting; (2) failure to comply with demand for inspection of books;

and (3) constructive trust.

On 5/5/2026, Defendant Global Land Investment Company, LLC (Defendant or GLIC) demurred to Plaintiff's Complaint.

Discussion

Defendant argues that Plaintiff's claims are each insufficiently pled.

As to the first and second causes of action, Defendant argues that Plaintiff has not alleged he is a member or shareholder of GLIC and thus has not alleged facts which could show he is entitled to compel Defendant to produce an accounting (1st COA) or books and records (2nd COA). Indeed, while Plaintiff alleges he is a member of Ridgecrest, he does not allege he was a member of GLIC. Moreover, Corporations Code section 1601 applies to corporations, not limited liability companies. Both GLIC and Ridgecrest are limited liability companies, and Plaintiff alleges them to be so in the Complaint. (Complaint, 2-3.) That Corporations Code section, therefore, does not apply to GLIC or Ridgecrest, and it cannot serve as the basis of these causes of action.

As for the third cause of action, Defendant argues that this claim fails because it is not a recognized cause of action in California. Indeed, a quasi-contract action for unjust enrichment does not lie where the parties' rights are defined by an express agreement. (California Medical Assn., Inc. v. Aetna U.S. Healthcare of California, Inc. (2001) 94 Cal.App.4th 151, 172; Lance Camper Manufacturing Corp. v. Republic Indemnity Co. (1996) 44 Cal.App.4th 194, 203.) Here, Plaintiff alleges the existence of an express contract.

The Court will grant leave to amend to allow Plaintiff the opportunity to allege facts which could show an entitlement to an accounting, an inspection of books and records, and unjust enrichment.

Based on the foregoing, Defendant's demurrer is sustained, with 20 days leave to amend.

It is so
ordered.

Dated:
August , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at smcdept17@lacourt.org
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please
contact the court clerk at (213) 633-0517.